

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RASAUN BULLOCK,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. MELISSA LEVINE, Shield No. 5451 (Tax Id. No. 955059), Individually and in her Official Capacity, P.O. OBSON CESAR, Shield No. 18054 (Tax Id. No. 952566), POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown), DEPUTY WARDEN SHERMA DUNBAR, Shield No. 717, Individually and in her Official Capacity, DEPUTY WARDEN JOSEPH J. GRIMA, Shield No. Currently Unknown, and CORRECTION OFFICERS/EMPLOYEES OF DOC "JOHN DOE" #1-50, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

**AMENDED
VERIFIED COMPLAINT**

Jury Trial Demanded

**BASIS FOR VENUE:
CPLR § 504**

Index No. 26052/2019E

PARTIES

1. Plaintiff RASAUN BULLOCK is an African American male, a citizen of the United States, and at all relevant times a resident of the County, City, and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department ("NYPD"), duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York

State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. Defendant, THE CITY OF NEW YORK, maintains the New York City Department of Correction (“DOC”), a duly authorized public authority and/or correctional department, authorized to perform all functions of a correctional department as per the applicable sections of the New York State Correction Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

5. That at all times hereinafter mentioned, the individually named defendants P.O. Melissa Levine, P.O. Obson Cesar, and P.O.s “JOHN DOE” #1-10 were duly sworn police officers of the NYPD and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned, the individually named defendants Deputy Warden Sherma Dunbar, Deputy Warden Joseph J Grima, and Correction Officers/Employees of DOC “JOHN DOE” #1-50 (the name John Doe being fictitious, as the true names are presently unknown), were duly sworn corrections officers of said department or other department of corrections personnel responsible for the care of inmates and were acting under the supervision of said department and according to their official duties.

7. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

9. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

The April 16, 2015 False Arrest

10. On or about or between April 16, 2015, at approximately 11:43 p.m. and April 17, 2015, at approximately 12:04 a.m., plaintiff RASAUN BULLOCK was lawfully inside of 159-14 Harlem River Drive, in New York, New York.

11. Specifically, plaintiff was inside the ninth (9th) floor stairwell, on the landing, with his then girlfriend, Christine Garth.

12. At the aforesaid time and place, defendant officers Melissa Levine and Obson Cesar (the “NYPD defendants”) approached plaintiff and began questioning him regarding a plastic cup they allegedly found in the stairwell, steps above plaintiff, toward the tenth (10th) floor, and several feet away from where plaintiff was sitting.

13. The NYPD defendants alleged that there were multiple bags of crack cocaine inside the aforementioned cup, and further claimed plaintiff Rasaun Bullock was in possession of this cup and its contents.

14. Thereafter, the NYPD defendants placed plaintiff Rasaun Bullock under arrest by handcuffing his arms tightly behind his back.

15. At no time on April 16, 2015 or April 17, 2015, was plaintiff ever in possession of this cup or the aforementioned crack cocaine alleged to have been found therein.

16. As a result, at no time on April 16, 2015 or April 17, 2015, did the NYPD defendants possess probable cause to arrest plaintiff.

17. At no time on April 16, 2015 or April 17, 2015, did the NYPD defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

18. Thereafter, on or about April 17, 2015, plaintiff was transported to a nearby police precinct where he was subjected to an invasive strip search.

19. At no time did the NYPD defendants possess the particularized suspicion necessary to justify an invasive strip search.

20. Further, while at the precinct, plaintiff was physically assaulted by defendants P.O. Obson Cesar and several other NYPD officers – namely, several of the defendant POLICE OFFICERS “JOHN DOE” #1-10.

21. As a result, plaintiff suffered physical injuries and requested medical attention.

22. However, the NYPD defendant officers, including defendant Cesar, refused to provide plaintiff Rasaun Bullock with any medical treatment or bring him to a hospital for same.

23. Thereafter, plaintiff was charged by the NYPD defendants with Criminal Possession of a Controlled Substance in the Third and Fifth Degrees.

24. At no time on April 16, 2015 or April 17, 2015, did plaintiff Rasaun Bullock possess any controlled substances or behave unlawfully in any way.

25. In connection with plaintiff's arrest, the NYPD defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office.

26. Thereafter, the NYPD defendants repeatedly gave false and misleading information regarding the facts and circumstances of plaintiff's arrest.

27. Amongst the various false statements made to prosecutors, the NYPD defendants falsely stated to the District Attorney that plaintiff Rasaun Bullock was sitting "directly next to" the aforementioned cup, was in possession of several bags of crack cocaine, and that plaintiff made the following statement: "It's not hers. She's got nothing to do with it," referring to Christine Garth.

28. As a result of his unlawful arrest and these false statements, plaintiff Rasaun Bullock was maliciously prosecuted and spent more than forty-three (43) months in custody before he was acquitted by a jury on November 29, 2018.

29. As a result of the foregoing, plaintiff Rasaun Bullock sustained, inter alia, loss of liberty, physical injury, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

The Unconstitutional and Unlawful Conditions of Plaintiff's Confinement at Rikers Island From April 18, 2015 to November 29, 2018

30. After plaintiff was arrested on or about April 16, 2015 or April 17, 2015, he was brought to Criminal Court on or about April 17, 2015, where he was arraigned on the aforementioned charges.

31. Plaintiff immediately and vocally proclaimed his innocence of all the charges, which resulted in the Court ordering a psychiatric evaluation to determine whether plaintiff was competent enough to assist in his defense.

32. As a result, plaintiff was remanded without bail and sent to Rikers Island.

33. Upon arriving at Rikers Island, plaintiff was housed along with the general population, despite the New York City Department of Corrections (“DOC”), Deputy Warden Sherma Dunbar, Deputy Warden Joseph J Grima, and/or Correction Officers/Employees of DOC “JOHN DOE” #1-50 (herein after collectively “the DOC Defendants”) being on notice that plaintiff may have been suffering from a psychiatric disease or defect.

34. Specifically, upon information and belief, plaintiff suffers from various psychological disorders, including, but not limited to, Schizophrenia, Delusional Disorder, Adjustment Disorder, Personality Disorder, and other unspecified disorders.

35. Upon information and belief, the DOC has no policies and/or procedures on how to properly house and treat inmates who might be suffering from mental illnesses and/or said policies and/or procedures are inadequate.

36. Upon information and belief, the DOC did not follow any of the policies and/or procedures it may have with respect to inmates who suffer from mental illness when dealing with plaintiff, Rasaun Bullock.

37. Upon information and belief, Correction Officers and DOC employees, including, but not limited to the DOC defendants, are not properly trained to handle inmates who may be suffering from mental illness.

38. As a result, over the course of plaintiff's entire incarceration with DOC from April 18, 2015 and November 29, 2018, plaintiff was regularly subjected to violent and brutal attacks by inmates and various correction officers and DOC employees – namely, the DOC defendants.

39. Specifically, upon information and belief, DOC employees – namely, the DOC defendants, encouraged other known violent inmates to physically attack plaintiff.

40. Further, upon information and belief, plaintiff was housed with inmates that were known to be violent and he was regularly assaulted by these inmates.

41. The DOC defendants refused to protect plaintiff from these assaults, even when they knew of the incidents or when they occurred in their presence.

42. Moreover, on several occasions throughout his incarceration from April 18, 2015 to November 29, 2018, plaintiff Rasaun Bullock was violently and brutally attacked by DOC correction officers and employees – namely, the DOC defendants.

43. In connection with these brutal attacks, plaintiff suffered multiple injuries throughout his body, including, but not limited to severe injuries to his face, neck, back, legs, shoulders, feet, arms, and hands.

44. Despite suffering these injuries, the DOC defendants would regularly refuse to provide plaintiff with proper or timely medical treatment.

45. For instance, plaintiff suffers from extreme back pain, which was especially aggravated after he was the subject of these aforementioned attacks.

46. Moreover, upon information and belief, plaintiff suffers from mental and neurological disorders that also contributed to excruciating back pain he experienced while he was incarcerated.

47. As a result of plaintiff's injuries and various medical conditions, plaintiff often could not walk without extreme difficulty, and/or suffered extreme pain when attempting to walk.

48. Consequently, plaintiff repeatedly requested throughout his incarceration that he be provided a wheelchair and be placed in housing that would accommodate his disability.

49. Notwithstanding being prescribed a wheelchair by multiple doctors while he was incarcerated, the DOC defendants refused to provide plaintiff a wheelchair, and would take away any wheelchairs that were provided to plaintiff by doctors and hospitals he saw while he was incarcerated.

50. In fact, defendants Deputy Wardens Sherma Dunbar and Joseph J. Grima specifically issued a memo to all DOC staff, including the other DOC defendants, warning them that they would be subject to disciplinary proceedings if then provided plaintiff a wheelchair.

51. Further other the DOC defendants designed a specific policy directed solely at plaintiff throughout the majority of his incarceration to deliberately and with callous indifference deny him a medically necessary wheelchair.

52. Consequently, throughout much of his incarceration plaintiff suffered multiple falls and was forced to crawl on the filthy floors of Rikers Island and/or the Manhattan Detention Complex to move around because he was unable to properly ambulate with the crutches the DOC defendants insisted were the only implements they would permit him to use.

53. Further, while the DOC clinic would provide plaintiff with crutches, the DOC defendants would often take those crutches away from him in an effort to terrorize, punish, and retaliate against plaintiff.

54. Moreover, despite plaintiff's numerous requests, the DOC defendants refused to house plaintiff in a special housing unit that would make it easier for him to move around and instead placed him general population housing with multiple staircases and other obstructions that made it nearly impossible for plaintiff move without constantly falling and causing more injuries to himself.

55. As a result, plaintiff slipped, tripped, and fell multiple times, almost on a weekly basis (and sometimes daily basis), because he did not have a wheelchair and was constantly being placed in housing that was not suitable for his condition.

56. Further, plaintiff was often not given his medication for epilepsy, asthma, and pain that was duly prescribed to him.

57. As a result, plaintiff suffered from seizures, asthma attacks, and extreme pain throughout his incarceration.

58. In addition, at some point during his incarceration plaintiff was housed in the West Facility, where inmates with contagious diseases are held, for several months even though plaintiff did not have a contagious disease.

59. Moreover, since DOC and/or the DOC defendants refused to provide plaintiff with a wheelchair and he was unable to walk, plaintiff regularly missed his scheduled court appearances causing his baseless criminal case to drag on and be delayed for more than forty-three (43) months.

60. Without the accommodation of a wheelchair, plaintiff missed attorney visits that were necessary for plaintiff and his counsel to prepare for trial.

61. Upon learning of DOC's unlawful policy directed at plaintiff, the Honorable Thomas Farber of the New York County Supreme Court specifically ordered the DOC to provide plaintiff of a wheelchair after years of being denied one.

62. It was only after Judge Farber ordered DOC to provide plaintiff a wheelchair, was one regularly provided to him, he was able to go to Court, meet with his Counsel and finally be present for his hearings and trial, which ultimately ended in his acquittal.

Defendants' Long History of Mistreatment of Inmates With Disabilities

63. Upon information and belief, the DOC has no policies and/or procedures on how to properly house and treat inmates who might be suffering from mental and/or physical disabilities.

64. Upon information and belief, the DOC did not follow any of the policies and procedures it may have with respect to inmates who suffer from mental and/or physical disabilities when dealing with plaintiff, Rasaun Bullock.

65. Upon information and belief, Correction Officers and DOC employees, including, but not limited to, the DOC defendants are not properly trained to handle inmates who suffer from mental and/or physical disabilities.

66. In fact, the City, and DOC have had a long history failing to comply with Americans with Disabilities Act ("ADA") regulations and failing to properly train its employees.

67. Indeed, the United States and DOC entered into a voluntary compliance agreement dated August 5, 2004 ("2004 Agreement", which imposed various obligations on

DOC with respect to Title II of the Americans with Disabilities Act of 1990 ("ADA"), 42 U.S.C. §§ 12131-12134 (Title II), and the Department of Justice's implementing regulation, 28 C.F.R. Part 35, and which terminated on August 5, 2007.¹

68. As part of the 2004 Agreement, the "DOC shall designate at least one employee with responsibility to coordinate DOC's efforts to comply with and carry out its responsibilities under the ADA with respect to inmates (the "Disability Rights Coordinator for Inmates").²

69. "DOC shall provide the Disability Rights Coordinator for Inmates with such training as necessary to ensure that the Disability Rights Coordinator for Inmates is fully knowledgeable about the legal rights of inmates with disabilities and the legal obligations of DOC with respect to inmates with disabilities."

70. As a result of the agreement the DOC was to modify its existing directives, rules, policies, and procedures concerning the screening and classification of prisoners upon their entry to NYDOC. The coordinator must be notified within 24 hours, or the next day after a holiday or weekend of the name of a prisoner who claims a disability, the nature of the disability, and any request for accommodation made by the prisoner upon receipt.

71. However, several years after the termination of the voluntary compliance agreement of 2004, the United States Attorney's Office for the Southern District of New York ("SDNY") initiated another investigation after receiving complaints that DOC violated the ADA.³

72. As a result of the complaints, the SDNY conducted onsite visits and voluminous materials in connection with its investigation "and reviewed voluminous materials in connection

¹ <https://www.ada.gov/nycdocrikers.htm>

² <https://www.ada.gov/nycdocrikers.htm>

³ <https://www.justice.gov/usao-sdny/press-release/file/1088311/download>

with its investigation, including but not limited to DOC's policies and training concerning the ADA, records relating to requests for accommodations submitted by or on behalf of inmates..."⁴

73. In fact, most recently, on August 16, 2018, a second voluntary compliance agreement ("Agreement") was entered into by and among the United States of America (the "United States") and the City of New York, the New York City Department of Correction ("DOC"), and the New York City Health and Hospitals Corporation ("HHC") to address the City's failure to comply with the ADA.⁵

74. The Agreement also required that the DOC develop and implement specific training to address the City's on-going, systemic, failure to meet ADA requirements.⁶

74. Further, in that agreement "[t]he SDNY concluded that...inmates with disabilities are denied an equal opportunity to participate in and benefit from certain services, programs, and activities."⁷

75. By failing to comply with the ADA, the DOC necessarily failed to comply with the New York City Human Rights Law (NYCHRL) and New York State Human Rights Law (NYSHRL), which are more protective of the ADA.

76. Upon information and belief none of the policies required by the aforementioned voluntary agreements were followed with respect to Rasaun Bullock.

77. As a result, plaintiff, a physically and mentally disabled individual, was denied several rights and suffered serious injury throughout his incarceration.

⁴ <https://www.justice.gov/usao-sdny/press-release/file/1088311/download>

⁵ <https://www.justice.gov/usao-sdny/press-release/file/1088311/download>

⁶ <https://www.justice.gov/usao-sdny/press-release/file/1088311/download>

⁷ <https://www.justice.gov/usao-sdny/press-release/file/1088311/download>

Specific Acts Violence Against Rasaun Bullock While Incarcerated⁸***The May 3, 2015 Attack on Rikers Island***

78. On or about May 3, 2015, less than a month after his arrest, plaintiff Rasaun Bullock, was violently and brutally attacked by at least four (4) inmates.

79. At the time of this attack, upon information and belief the defendant corrections officers responsible for guarding the housing area where this attack occurred were not on their assigned posts.

80. Upon information and belief, the DOC and the DOC defendants knew about these attacks and observed these inmates attacking plaintiff, but did not stop or prevent the inmates from attacking plaintiff.

81. Upon information and belief, the DOC defendants encouraged these inmates to attack plaintiff.

82. Upon information and belief, the DOC defendants also participated in attacking plaintiff during this violent assault.

83. Upon information and belief, plaintiff's attackers had victimized other inmates prior to their attack against plaintiff.

84. Due to their prior attacks on others, the DOC defendants were fully aware of their violent proclivities.

⁸ Upon information and belief, this is not a complete list of all the attacks perpetuated against plaintiff throughout his incarceration. Plaintiff will amend and supplement the complaint as this case proceeds through discovery and the records reveal more information on the daily violent conditions of confinement plaintiff had to endure during his incarceration.

85. As such, the DOC and the DOC defendants were negligent, grossly negligent, reckless, and/or deliberately indifferent in failing to protect and safeguard plaintiff from this attack.

86. Further, the DOC defendants placed plaintiff in a general population housing facility with other known violent inmates despite being aware that plaintiff suffered mental health disorders including but not limited to conditions such as Schizophrenia, Delusional Disorder, Adjustment Disorder, Personality Disorder, and other unspecified disorders.

87. As a result, the DOC defendants were particularly negligent, reckless, and/or deliberately indifferent to placing plaintiff in danger of suffering a violent attack.

88. As a result of this violent attack plaintiff suffered severe physical injuries, including a broken nose, a scalp laceration requiring several staples to his head, internal pelvic bleeding and multiple injuries to his neck and back.

89. Consequently, plaintiff was transferred to a hospital outside of Rikers Island, where he was treated in the intensive care unit for several days.

90. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The May 21, 2015 Attack on Rikers Island

91. On or about May 21, 2015, plaintiff was assaulted DOC correction officers – namely, the DOC defendants – without cause or reasonable justification.

92. Upon information and belief this attack was documented under DOC Injury Report # 446.

93. As a result of this brutal attack, plaintiff lost consciousness and injured his neck and back.

94. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The May 22, 2015 Attack at Elmhurst Hospital

95. On or about May 22, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification at Elmhurst Hospital.

96. As a result of this brutal attack, plaintiff injured his feet.

97. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The June 8, 2015 Attack on Rikers Island

98. On or about June 8, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

99. Upon information and belief this attack was documented under DOC Injury Report # 1233F/Y15.

100. As a result of this brutal attack, plaintiff reinjured his neck and back.

101. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The June 30, 2015 Attack on Rikers Island and Unlawful Placement in Punitive Segregation

102. On or about June 30, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

103. As a result of this brutal attack, plaintiff reinjured his neck and back.

104. Further, despite his mental health disorders and physical ailments plaintiff was placed in punitive segregation without justification.

105. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The September 5, 2015 Attack on Rikers Island

106. On or about September 5, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

107. Specifically, the DOC defendants slammed a metal gate on plaintiff's left foot.

108. As a result of this brutal attack, plaintiff injured his left foot.

109. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The September 24, 2015 Attack on Rikers Island

110. On or about September 24, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

111. As a result of this brutal attack, plaintiff lost consciousness and injured his neck and back.

112. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The October 25, 2015 Attack on Rikers Island

113. On or about October 25, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

114. As a result of this brutal attack, plaintiff was exposed to OC spray.

115. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The November 5, 2015 Attack on Rikers Island

116. On or about November 5, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

117. Upon information and belief this attack was documented under DOC Injury Report # 591.

118. As a result of this brutal attack, plaintiff reinjured his neck and back.

119. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The November 17, 2015 Attack on Rikers Island

120. On or about November 17, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

121. Upon information and belief, plaintiff was attacked by the DOC defendants when he was on his way to Court.

122. As a result, plaintiff was not able to attend his Court hearing.

123. As a result of this brutal attack, plaintiff reinjured his neck and back and suffered wrists pain.

124. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The December 15, 2015 Attack on Rikers Island

125. On or about December 15, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

126. Upon information and belief this attack was documented under DOC Injury Report # 774.

127. Upon information and belief, the DOC and the DOC defendants were attempting to take plaintiff's medically prescribed wheelchair away from him again and began assaulting him.

128. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The December 16, 2015 Attack on Rikers Island and Unlawful Placement in Punitive Segregation

129. On or about December 16, 2015, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

130. As a result of this brutal attack, plaintiff reinjured his neck and back.

131. Further, despite his mental health disorders and physical ailments plaintiff was placed in punitive segregation for several months without justification.

132. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The February 18, 2016 Attack at Bellevue Hospital

133. On or about February 18, 2016, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

134. Upon information and belief this attack was documented under DOC Injury Report # 1612.

135. Upon information and belief, the DOC and the DOC defendants were attempting to take plaintiff's medically prescribed wheelchair away from him again and began assaulting him.

136. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The March 10, 2016 Attack on Rikers Island

137. On or about March 10, 2016, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

138. Upon information and belief this attack was documented under DOC Injury Report # 1323.

139. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The June 20, 2016 Attack on Rikers Island

140. On or about June 20, 2016, plaintiff Rasaun Bullock, was violently and brutally attacked by at least three (3) inmates.

141. Upon information and belief, this attack was documented under DOC Injury Report # 1880.

142. At the time of this attack, upon information and belief the DOC defendants responsible for guarding the housing area where this attack occurred were not on their assigned posts.

143. Upon information and belief, the DOC defendants observed these inmates attacking plaintiff and did not stop or prevent the inmates from attacking plaintiff.

144. Upon information and belief, the DOC defendants encouraged these inmates to attack plaintiff.

145. Upon information and belief, the DOC defendants also participated in attacking plaintiff during this violent assault.

146. Upon information and belief, plaintiff's attackers had victimized other inmates prior to their attack against plaintiff.

147. Due to their prior attacks on others, the DOC and the DOC defendants were fully aware of their violent proclivities.

148. As such, defendants were negligent, grossly negligent, reckless, and/or deliberately indifferent in failing to protect and safeguard plaintiff from this attack.

149. Further, the DOC defendants placed plaintiff in a general population housing facility with other known violent inmates despite being aware that plaintiff suffered mental health disorders.

150. As a result, the DOC defendants were particularly negligent, reckless, and/or deliberately indifferent to placing plaintiff in danger of suffering a violent attack.

151. As a result of this violent attack plaintiff suffered severe physical injuries.

152. Consequently, plaintiff was transferred to a hospital outside of Rikers Island, where he was treated for his injuries.

153. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The June 25, 2016 Attack at Bellevue Hospital

154. On or about February 18, 2016, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

155. Upon information and belief, the DOC and the DOC defendants were attempting to take plaintiff's medically prescribed wheelchair away from him again and began assaulting him.

156. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The August 17, 2016 Attack on Rikers Island

157. On or about August 17, 2016, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

158. Upon information and belief, the DOC and the DOC defendants were attempting to take plaintiff's medically prescribed wheelchair away from him again and began assaulting him.

159. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The August 23, 2016 Attack on Rikers Island

160. On or about August 23, 2016, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

161. Upon information and belief, the DOC defendants sprayed plaintiff in the eyes with OC spray.

162. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The October 18, 2016 Unlawful Placement in Punitive Segregation

163. On or about October 18, 2016, plaintiff was placed by the DOC and the DOC defendants in punitive segregation for sixty (60) days without justification, despite his mental health disorders and physical ailments.

164. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The November 3, 2016 Attack on Rikers Island

165. On or about November 3, 2016, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

166. Upon information and belief, the DOC defendants sprayed plaintiff in the eyes with OC spray.

167. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The December 11, 2016 Attack on Rikers Island

168. On or about December 11, 2016, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

169. Upon information and belief this attack was documented under DOC Injury Report # 113/16

170. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The December 12, 2016 Attack on Rikers Island

171. On or about December 12, 2016, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

172. Upon information and belief, this attack was documented under DOC Injury Report # 113/16

173. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The January 17, 2017 Attack in Manhattan Criminal Court

174. On or about January 17, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

175. Upon information and belief, the DOC defendants tightly handcuffed his arms causing serious injury to his wrists.

176. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The March 10, 2017 Attack on Rikers Island

177. On or about March 10, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

178. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The March 21, 2017 Attack on Rikers Island

179. On or about March 21, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

180. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The March 24, 2017 Attack on Rikers Island

181. On or about March 24, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

182. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The May 10, 2017 Attack on Rikers Island

183. On or about May 10, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

184. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The August 18, 2017 Attack on Rikers Island

185. On or about August 18, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

186. Upon information and belief, this attack was documented under DOC Injury Report # 66.

187. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The August 20, 2017 Attack on Rikers Island

188. On or about August 20, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

189. Upon information and belief, this attack was documented under DOC Injury Report # 69.

190. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The September 28, 2017 Attack on Rikers Island

191. On or about September 28, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

192. Upon information and belief, this attack was documented under DOC Injury Reports # 111 and 112.

193. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The November 15, 2017 Attack on Rikers Island

194. On or about November 15, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

195. Upon information and belief, the DOC and the DOC defendants took plaintiff's medically prescribed wheelchair away from him and assaulted him when he protested the conditions of his confinement.

196. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The December 2, 2017 Attack on Rikers Island

197. On or about December 2, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

198. Upon information and belief, the DOC and the DOC defendants took plaintiff's medically prescribed wheelchair away from him and assaulted him when he protested the conditions of his confinement.

199. Upon information and belief, this attack was documented under DOC Injury Reports # 192.

200. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The December 10, 2017 Attack on Rikers Island

201. On or about December 10, 2017, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

202. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The Various Attacks throughout January 2018 on Rikers Island

203. On or about January 6, 2018 through January 22, 2018, plaintiff was assaulted by the DOC defendants without cause or reasonable justification on a nearly daily basis.

204. Upon information and belief, these attacks were documented under DOC Injury Reports # 1589, 1563, 1523, 1522, 1473 and 211.

205. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The May 16, 2018 Attack on Rikers Island

206. On or about May 16, 2018, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

207. Upon information and belief, the DOC and the DOC defendants took plaintiff's medically prescribed wheelchair away from him and assaulted him when he protested the conditions of his confinement.

208. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The May 17, 2018 Attack on Rikers Island

209. On or about May 17, 2018, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

210. Upon information and belief, the DOC and the DOC defendants took plaintiff's medically prescribed wheelchair away from him and assaulted him when he protested the conditions of his confinement.

211. The Defendant DOC officers taunted plaintiff about his wheelchair, called him crazy, and picked him up by his underwear.

212. As a result of defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The August 9, 2018 Attack on Rikers Island

213. On or about August 9, 2018, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

214. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The September 7, 2018 Attack on Rikers Island

215. On or about September 7, 2018, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

216. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

The November 5, 2018 Attack on Rikers Island

217. On or about November 5, 2018, plaintiff was assaulted by the DOC defendants without cause or reasonable justification.

218. Upon information and belief, the DOC defendants aggressively searched plaintiff and stuck fingers near plaintiff's rectum.

219. As a result of the DOC defendants' aforementioned conduct, plaintiff suffered permanent and severe physical injuries, humiliation, and extreme emotional distress.

PROCEDURAL REQUIREMENTS

220. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

221. On or about December 5, 2018, within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

222. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

223. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on February 6, 2019.

224. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

225. Plaintiff has complied with all conditions precedent to maintaining the instant action.

226. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

CLAIMS ARISING UNDER NEW YORK STATE LAW

FIRST CLAIM FOR RELIEF
FALSE ARREST/IMPRISONMENT

227. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

228. Defendant police officers LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

229. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints.

230. Plaintiff was conscious of said confinement and did not consent to the same.

231. The confinement of plaintiff was without probable cause and was not otherwise privileged.

232. As a result of the aforesaid conduct by defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper and

false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 constituted a deprivation of plaintiff’s rights.

233. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SECOND CLAIM FOR RELIEF
MALICIOUS PROSECUTION

234. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

235. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence before the New York County District Attorney.

236. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.

237. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 withheld exculpatory evidence from the District Attorney.

238. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

239. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

240. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.

241. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

242. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

243. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

244. Defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

245. Specifically, defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10 falsely stated to the District Attorney that plaintiff Rasaun Bullock was sitting “directly next to” a cup containing bags of controlled substances, was in possession of several bags of crack cocaine, and that plaintiff made the following statement: “It’s not hers. She’s got nothing to do with it,” referring to Christine Garth.

246. Notwithstanding the perjurious and fraudulent conduct of defendants LEVINE, CESAR, and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceeding against plaintiff was dismissed in its entirety on or about November 28, 2018 after a jury acquitted him of all charges.

247. As a result of this prosecution plaintiff spent more than forty-three (43) months in jail before he was acquitted by a jury on November 29, 2018.

248. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he lost wages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF
NEGLIGENCE and GROSS NEGLIGENCE

249. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

250. On the dates aforesaid, the plaintiff was within the custody and control of the DOC and/or their agents, servants and/or employees.

251. The foregoing incidents and the resulting injuries to plaintiff's person were caused solely and as a direct and proximate cause of the carelessness, negligence, and/or gross negligence on the part of the defendant DOC, their servants, agents, employees and/or licensees and without any negligence on the part of the plaintiff contributing thereto, in that the DOC and/or the DOC defendants had a duty to protect plaintiff from being assaulted by other inmates as a result of their status as corrections officers, breached said duty by failing to intervene to when plaintiff was assaulted by other inmates, and this failure was objectively unreasonable.

252. The foregoing incidents and the resulting injuries to plaintiff's person were caused solely and as a direct and proximate cause of the carelessness, negligence, and/or gross negligence on the part of the defendant DOC, their servants, agents, employees and/or licensees and without any negligence on the part of the plaintiff contributing thereto, in that the DOC and/or the DOC defendants had a duty to provide adequate medical treatment to plaintiff.

253. By reason of the foregoing, the plaintiff has been seriously and severely injured and damaged, suffered great physical pain, and is permanently caused to suffer pain, inconvenience, extreme emotional distress, and other consequences of such injuries.

FOURTH CLAIM FOR RELIEF
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

254. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

255. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

256. The aforementioned conduct was committed by the NYPD and/or DOC defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

257. The aforementioned conduct was committed by the NYPD and/or DOC defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

258. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

259. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, and fright.

FIFTH CLAIM FOR RELIEF
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

260. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

261. The DOC and/or the DOC defendants owed a duty to maintain plaintiff's safety and well-being.

262. The DOC and/or the DOC defendants breached that duty by failing to protect him and endangering his physical safety.

263. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

264. The DOC and/or the DOC defendants' breach was the direct and/or proximate cause of plaintiff's injury.

265. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, and fright.

SIXTH CLAIM FOR RELIEF
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

266. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

267. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Department of Corrections, including the defendants individually named above.

268. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Department of Corrections including the defendants individually named above.

269. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

270. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

271. Due to the negligence of the defendants as set forth above, plaintiff suffered physical injury, pain and trauma, together with embarrassment and humiliation.

272. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

**SEVENTH CLAIM FOR RELIEF
DISABILITY DISCRIMINATION
PURSUANT TO NEW YORK CITY HUMAN RIGHTS LAW (NYCHRL)**

273. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

274. Plaintiff has a disability within the meaning of the NYCHRL.

275. At all relevant times herein, plaintiff could not walk without the assistance of a wheelchair due to a physical and/or psychological impairment.

276. Further, upon information and belief, plaintiff suffers from various psychological disorders, including, but not limited to, Schizophrenia, Delusional Disorder, Adjustment Disorder, Personality Disorder, and other unspecified disorders that excluded him from participating in and/or denied him the benefits of services, programs, or activities at the DOC while he was in their custody.

277. The DOC and/or the DOC defendants' refusal to allow plaintiff to have a wheelchair and/or their failure to provide him with proper mental health services subjected plaintiff to discrimination on the basis of his disability in violation of his rights under the

NYCHRL, in ways that include, but are not limited to the following (1) inadequate access to the facilities in the jail to enable him to participate in and benefit from the DOC' programs and services (2) inability to attend his Court proceedings, (3) inability to meet with his attorneys, (4) inability to maneuver freely without risk of injury, and (5) inability to be in a safe housing accommodating his disability.

278. By the acts and practices described in this complaint, the DOC and/or the DOC defendants committed housing discrimination against plaintiff by discriminating against him on the basis of his disability and failed to provide plaintiff a reasonable accommodation to enjoy the "rights in question that the disability is known or should have been known to by the covered entity" in violation of NYCHRL. N.Y.C. Administrative Code § 8-107(15).

279. By the acts and practices described in this complaint, the DOC and/or the DOC defendants committed public accommodation discrimination against plaintiff by discriminating against him on the basis of his disability and failed to provide plaintiff a reasonable accommodation to enjoy the "rights in question that the disability is known or should have been known to by the covered entity" in violation of NYCHRL. N.Y.C. Administrative Code § 8-107(15).

280. The DOC and/or the DOC defendants knew that its actions constituted unlawful discrimination and/or acted with malice or reckless disregard for plaintiff's statutorily protected rights.

281. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, and fright.

**EIGHTH CLAIM FOR RELIEF
DISABILITY DISCRIMINATION
PURSUANT TO NEW YORK STATE HUMAN RIGHTS LAW (NYSHRL)**

282. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

283. Plaintiff has a disability within the meaning of the NYSHRL.

284. At all relevant times herein, plaintiff could not walk without the assistance of a wheelchair due to a physical and/or psychological impairment.

285. Further, upon information and belief, plaintiff suffers from various psychological disorders, including, but not limited to, Schizophrenia, Delusional Disorder, Adjustment Disorder, Personality Disorder, and other unspecified disorders that excluded him from participating in and/or denied him the benefits of services, programs, or activities at the DOC while he was in their custody.

286. The DOC and/or the DOC defendants' refusal to allow plaintiff to have a wheelchair and/or their failure to provide him with proper mental health services subjected plaintiff to discrimination on the basis of his disability in violation of his rights under the NYSHRL, in ways that include, but are not limited to the following (1) inadequate access to the facilities in the jail to enable him to participate in and benefit from the DOC' programs and services (2) inability to attend his Court proceedings, (3) inability to meet with his attorneys, (4) inability to maneuver freely without risk of injury, and (5) inability to be in a safe housing accommodating his disability.

287. By the acts and practices described in this complaint, the DOC and/or the DOC defendants committed housing discrimination against plaintiff by discriminating against him on

the basis of his disability in violation of the New York State Human Rights Law (NYSHRL), Exec. Law § 296(5)(a).

288. By the acts and practices described in this complaint, the DOC and/or the DOC defendants committed housing discrimination because they refused to make reasonable accommodations in their “rules, practices, or services,” during plaintiff’s stay which were necessary so plaintiff, a disabled person, could have an equal opportunity to use and enjoy a dwelling in violation of the New York State Human Rights Law (NYSHRL), Exec. Law § 296(18).

289. By the acts and practices in this complaint, the DOC and/or the DOC defendants committed public accommodation discrimination against plaintiff by discriminating against him on the basis of his disability in violation of the New York State Human Rights Law (NYSHRL), Exec. Law § 296(2).

290. By the acts and practices described in this complaint, the DOC and/or the DOC defendants committed public accommodation discrimination because they refused to make reasonable accommodations “to ensure that no individual with a disability is excluded or denied services” in violation of the New York State Human Rights Law (NYSHRL), Exec. Law § 296(2).

291. The DOC and/or the DOC defendants knew that its actions constituted unlawful discrimination and/or acted with malice or reckless disregard for plaintiff’s statutorily protected rights.

292. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, and fright.

NINTH CLAIM FOR RELIEF
ASSAULT

293. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

294. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

295. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

TENTH CLAIM FOR RELIEF
BATTERY

296. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

297. Defendants touched plaintiff in a harmful and offensive manner.

298. Defendants did so without privilege or consent from plaintiff.

299. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

ELEVENTH CLAIM FOR RELIEF
DELIBERATE INDIFFERENCE TO PLAINTIFF'S WELFARE & SAFETY

300. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

301. The DOC and/or the DOC defendants had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with deliberate indifference and callous disregard for plaintiff's rights failed or refused to do so.

302. By their deliberate indifference to plaintiff's welfare and safety, the DOC and/or the DOC defendants deprived plaintiff of the rights, remedies, privileges, and immunities guaranteed to every citizen of the State of New York, pursuant to the New York State Constitution, common law, and statutes.

303. The DOC defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment with the DOC.

304. The DOC defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

305. As a proximate cause of the acts of the DOC and the DOC defendants, plaintiff suffered *inter alia*, physical injury, medical expenses, and severe mental and emotional anguish in connection with the deprivation of his aforementioned constitutional and statutory rights.

TWELFTH CLAIM FOR RELIEF
DELIBERATE INDIFFERENCE TO PLAINTIFF'S MEDICAL NEEDS

306. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

307. The DOC and/or the DOC defendants knew that plaintiff had sustained severe and serious injuries throughout his incarcerations with regard to several assaults from other inmates and DOC staff which required treatment.

308. The DOC and/or the DOC defendants were aware that plaintiff suffered from psychological disorders which required treatment and special housing.

309. The DOC and/or the DOC defendants were also aware that plaintiff required a wheelchair and reasonable accommodations to maneuver throughout the jail.

310. Notwithstanding this knowledge, the DOC and/or the DOC defendants refused to provide adequate medical treatment in a timely fashion and refused to ensure that plaintiff received the proper treatment.

311. In so doing, the DOC and/or the DOC defendants exhibited a deliberate indifference to the health, safety, welfare and medical needs of plaintiff, in violation of his constitutional rights pursuant to the New York State Constitution, common law, and statutes.

312. As a proximate cause of the acts of the DOC and/or the DOC defendants, plaintiff suffered *inter alia*, physical injury, medical expenses, and severe mental and emotional anguish in connection with the deprivation of his aforementioned constitutional and statutory rights.

**THIRTEENTH CLAIM FOR RELIEF VIOLATION OF
DENIAL OF NEW YORK STATE DUE PROCESS**

313. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

314. The DOC and/or the DOC defendants violated the Due Process Clause of the New York State Constitution for subjecting plaintiff to a policy, practice and/or custom of unconstitutional conditions of confinement by failing to provide him a medically necessary wheelchair and/or other accommodation for his physical/mental disability.

315. The DOC and/or the DOC defendants subjected plaintiff to unconstitutional conditions of confinement by being deliberately indifferent to his medical needs for a wheelchair and/or other accommodation for his physical/mental disability.

316. As a result of the foregoing, plaintiff was humiliated, suffered from mental anguish, physical injury and subjected to him unsanitary conditions that caused him mental and physical harm.

FOURTEENTH CLAIM FOR RELIEF
DENIAL OF ACCESS TO COURTS AND COUNSEL

317. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

318. The DOC and/or the DOC defendants repeatedly denied plaintiff access to Criminal Court in order to effectively litigate his criminal case.

319. Specifically, the DOC and/or the DOC defendants would not permit plaintiff to use medically prescribed wheelchairs to ambulate and would take away any wheelchairs that were given to him by medical professionals, which effectively prevented him from physically attending Court hearings throughout much of his incarceration.

320. In addition, plaintiff was unable to meet regularly with his criminal defense attorneys because he was denied access to wheelchairs or any other means to maneuver properly to meet with his counsel.

321. It was not until the Supreme Court Judge who presided over his trial ordered the DOC to provide plaintiff a wheelchair was plaintiff finally able to attend his court proceedings and proceed to trial, where he was ultimately acquitted.

322. As a result of the DOC and/or the DOC defendants' actions, plaintiff's criminal trial was severely delayed, which caused him to be incarcerated for more than forty-three (43) months before he was finally given a reasonable accommodation that permitted him to have access to the Courts and his attorney.

323. As a proximate cause of the acts of the DOC and/or the DOC defendants, plaintiff suffered *inter alia*, loss of liberty, physical injury, and severe mental and emotional

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

) ss.:

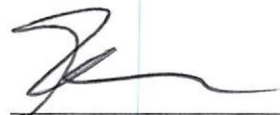
COUNTY OF NEW YORK)

RASAUN BULLOCK, being duly sworn, deposes and says:

I am the plaintiff in the foregoing action; I have read the annexed Amended Complaint and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and to those matters I believe them to be true.


RASAUN BULLOCK

Sworn to before me this
1 day of July, 2019



Notary Public

